

Case Number: NAIH-6752-10/2023.

Background: NAIH-5726/2022.

Datadat Professional Kft.

Company Portal: 25838046

Dear Recipient!

A notification has been received by the National Authority for Data Protection and Freedom of Information (hereinafter: Authority), in which the notifier complained that between September 14 and 20, 2021, they received unsolicited telephone inquiries (SMS, phone calls) from the phone numbers +36303444081 and +36303444674.

An investigation has been initiated based on Article 57(1)(f) of Regulation (EU) 2016/679 (hereinafter: GDPR), which concerns the protection of natural persons with regard to the processing of personal data and the free movement of such data, as well as the repeal of Directive 95/46/EC, and Section 38(3)(a) of Act CXII of 2011 on the right to informational self-determination and freedom of information (hereinafter: Infotv.).

A)

i) According to the information provided by the service provider, Magyar Telekom Nyrt., the subscriber of the phone numbers is LINK Mobility Kft. (headquarters: 1064 Budapest, Andrásy út 64. C. building, 1st floor, 1.; Company Registration Number: 01-09-694287).

ii) The Authority contacted LINK Mobility Kft., requesting information about which of their clients sent SMS messages from the phone number +36303444081 on September 14, 2021, at 17:26, and from the phone number +36303444674 on September 20, 2021, at 16:37, as well as which client's commission is related to the following SMS messages:

"Early voting starts this Saturday. Can I count on your vote as a prime ministerial candidate for the change of government, to end the privileged 1% rule? Plan with us how and when you will vote!" Click! karacsonygergely.hu/segitunkszavazni Thank you, Gergely Karácsony"

"BREAKING NEWS ABOUT EARLY VOTING: VOTING PLACES AND ONLINE voting have reopened. The first round lasts until TUESDAY, SEPTEMBER 28! Every vote counts, remind three people to go and vote for Gergely Karácsony, the only candidate who can defeat Orbán! Plan your own voting here, find out where you can vote: <https://karacsonygergely.hu/segitunkszavazni/>."

According to LINK Mobility Kft.'s statement, the sending of the referenced SMS messages at the specified times is linked to VCC Live Hungary Kft. (1112 Budapest, Balatoni út 2/A. 5th floor).

iii) In response to the Authority's inquiry, VCC Live Hungary Kft. provided the following statement:

VCC Live Hungary Kft. provides software usage, product support, and other alternative telecommunications services to subscribers operating customer service. The subscribers are unique.
Dr. Péterfalvi Attila András

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Subscribers have a subscriber contract for the use of telecommunications services, under which calls initiated by the subscriber are forwarded to the called party, and there is also the possibility of sending SMS messages, for example, through their system.

The referenced phone numbers were used by SzondaPhone Kft. "v.a." (headquarters: 1096 Budapest, Thaly Kálmán u. 39.; hereinafter: Kft.) during the specified periods. Further information regarding SMS sending can accordingly be provided by the Kft.

iv)

In response to the inquiries contained in the Authority's request, the Kft. stated the following:

1. Regarding the data processing related to inquiries from the specified +36303444081 and +36303444674 phone numbers, the data controller is the Kft.'s client, Datadat GmbH.

2. Acting on behalf of Datadat GmbH, the Kft. acted as a data processor during the provision of the service, and during the specified period, the Kft. exclusively performed SMS messaging activities from the referenced phone numbers. Based on the assignment, 119,776 individuals were contacted.
 3. The SMS messages specified in point ii) are related to the assignment of Datadat GmbH. According to the Kft.'s statement, it acted as a data processor in accordance with the attached service contract to its response letter. The Kft. as a data processor only processes those personal data that are provided to it by its client, the data controller, for the purpose and duration of fulfilling the tasks specified in the contract. The legal basis is the performance of the contract based on the service contract. In this assignment, the data controller Datadat GmbH only provided phone numbers according to the contract, to which the SMS messages were sent by the Kft.
 4. The Kft. maintains its previous statement made in the response letter dated April 15, 2022, regarding the questions contained in the Authority's inquiry NAIH-964-8/2022, referring to the fact that it has a Data Processing and Data Security Information and Internal Data Processing Regulations in accordance with the provisions of the GDPR and the Infotv., and it strictly adheres to these in its activities. The Kft.'s activities commence only after the conclusion of a contract, and the contracts specify what the data processor's tasks are, whether it processes personal data or not. As a general rule, it does not process, thus the record of data processing activities is based on the content of the contracts and the verification of performances.
 5. Datadat GmbH transferred the personal data it processed – in this case, phone numbers – to the Kft. via email after the conclusion of the service contract for the purpose of carrying out its data processing activities.
 6. The Kft., as a data processor, does not have its own database; it performs its data processing activities using the data managed by its clients, as data controllers, within the framework of the content and deadlines of the assignment.
 7. The Kft. does not store personal data for the performance of its tasks, thus it cannot provide substantive statements regarding access.
 8. The Kft. stores personal data according to the contract with the data controller until the completion of the contract, after which all personal data is returned to the client.
 9. As a data processor, the Kft. does not inform the data subjects about the manner of processing personal data. If a data subject nonetheless contacts the Kft. with any request or demand, the Kft. will promptly forward their request or question to the data controller. Only the data controller can provide a substantive response and information to the data subject.
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10. The Kft. acts as a data processor, with VCC Live Hungary Kft. providing the technical service, thus VCC Live Hungary Kft. also acts as a further data processor. During the SMS sending process, the program of VCC Live Hungary Kft. is used as the technical service provider.
 11. Between September 14, 2021, and September 20, 2021, the phone numbers contacted with the indicated SMS messages are no longer available to the Kft., as they have been returned to the client, Datadat GmbH, and thus will no longer be stored by the Kft.
 12. The SMS sending was carried out to the phone numbers provided by Datadat GmbH, without a selection method, using the complete phone number list.
 13. The Kft. attached a copy of the contract concluded with Datadat GmbH, dated September 1, 2021, and its annexes to its response letter.

v)

Datadat GmbH (hereinafter: GmbH) provided the following statements regarding the questions contained in the Authority's inquiry:

1. The GmbH acted as a data processor in sending such SMS messages as a subcontractor of Datadat Professional Kft. (hereinafter: Datadat Kft.). They received information from their client that the service was performed for a client who was the exclusive data controller. The name of the association is: Kilencvenkilenc Mozgalom Egyesület (2045 Törökbálint, Csiri utca 18.).
2. Regarding the indicated phone numbers, neither the GmbH nor Datadat Kft. has had or has exclusive rights to use the phone numbers. Thus, their statement can only extend to whether the SMS

messages with the text recorded in the inquiry were sent on behalf of the GmbH. They cannot provide precise information regarding the number of SMS messages sent, as they collaborated with their SMS-sending subcontractor on numerous other projects, and by the end of 2021, all sorted data related to the specific SMS sends for the specific period were destroyed, so they cannot accurately state how many SMS messages were sent with the text described in the inquiry.

3. The GmbH is a data processor regarding the sending of the SMS messages in question. The GmbH attached the contract concluded between the GmbH as the service provider and Datadat Kft. as the client to its response letter.

4. The GmbH is not the data controller of personal data, mobile phone numbers, email addresses, or residential addresses in relation to the inquiry.

5. The GmbH, as a data processor, cannot provide a comprehensive statement regarding the source from which the data controller obtained the database containing personal data. The GmbH can state what data collection methods it supported – not exclusively – as a data processing subcontractor:

a) Licensing of the software of a CRM, email sender, and subscription page called Action Network, which software is suitable for the data controller to configure unique subscription web pages and collect data through them, requiring the digitally documented consent of the sympathizing voter citizen for any data saving. There is no possibility for automatic data collection through this software without the direct and explicit consent of the citizen.

b) WinWithMe Facebook Messenger messaging application. This software is owned by Datadat OÜ, and the GmbH licenses the software from this subsidiary.

The WinWithMe software is a so-called single tenant application, meaning that each client environment runs in a separate instance, isolated from the data of other clients.

According to the platform rules of Facebook, the Messenger software only begins to handle/process any data from citizens with the digitally documented, explicit consent of the citizen. Automatic data collection, subscription...

4. Data acquisition without consent does not occur and cannot occur. Upon subscription, only the user's Facebook name and a special, situational ID, known as PSID (page-scoped user-id), are assigned by Facebook to the respective citizen, through which messages can only be sent directly to them as long as the user is subscribed to the relevant Messenger channel. If they unsubscribe, this is no longer possible. If the user subscribes again after unsubscribing, Facebook would issue a new PSID for them, and the old one would no longer be searchable for the user.

During voluntary communication on Messenger, the user can respond to questions through button clicks, which will be stored as voluntarily expressed preferences. For example, if the user provides a postal code, it will be stored as such. In the case of phone numbers and mobile numbers, Facebook, as the platform, already knows the relevant phone number and/or mobile number, as the user had to provide these previously. Automatic acquisition of email and/or mobile numbers without the user's explicit consent is not possible, as the platform rules do not allow it, and the software is not capable of it. Facebook does not share this data with the data controller, i.e., the subscriber of WinWithMe. This is only possible if the user themselves expresses renewed consent as part of a doubt-opt-in process by responding to an explicit question, and this voluntary decision is stored as digitally documented consent. Following this, the software receives the email address and/or mobile number.

6. Contacting with a specific instance of the WinWithMe software is only possible according to Facebook's public platform rules. There are three ways to do this:

- A user message directly to the Messenger channel and/or the relevant Facebook page,
- If the private reply function is active, then a comment published by the user on the "host page" of the given Messenger channel on Facebook;
- Clicking on a special, so-called click-to-messenger Facebook advertisement.

In all three cases, the first declarant of the contact is the user. After voluntary user contact, automatic subscription does not occur, so no data is transferred to WinWithMe for processing. It is necessary for the user to answer "yes" to a question regarding their intention to subscribe. If they do not do this, they will not be subscribed. Subscription conversations are configurable solutions by the clients, as data

controllers.

A Messenger channel cannot be activated if the option to unsubscribe and subscribe is not accessible within one click through the channel menu. Facebook will disable the Messenger channel if it does not have these settings. Similarly, it is mandatory to directly link the relevant data controller's privacy policy, which Facebook, as the platform, automatically checks.

7. The GmbH is not the data controller of any data, thus it does not possess any database.

8. As part of the relevant project, two CRM systems store the data, one is the Action Network license, and the other is WinWithMe. The former manages the entire database, including email sending, and the data provided by citizens through subscription pages; the latter exclusively manages the data acquired through the Facebook Messenger channel after the citizen's digitally documented consent.

Access to the database is only available to the IT manager of GmbH and designated employees of Datadat Kft. via internet connection through a web browser, for which screenshots have been attached as proof.

9. The GmbH is not the data controller of any data, thus it cannot comment on the location of data processing.

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Information regarding the data processing location of the software licensed by A GmbH is available on the software's websites:

- For the Action Network software, at <https://actionnetwork.org/terms/> and <https://actionnetwork.org/privacy/>,

- Regarding the WinWithMe software: Records Management Policy: winwith.me/privacy.

10. The software licensed and operated by A GmbH makes the relevant data processor's privacy policy directly accessible, unremovably, at all subscription and data recording moments, with just one click, which A GmbH educates its clients about, and the software is operated only if these parameters are met.

Since A GmbH is not a data controller in relation to the Authority's inquiry, it is unable to provide information regarding the content and manner of the notification.

11. A GmbH collaborated with SzondaPhone Kft. as a data processor regarding the sending of SMS messages (A GmbH as the client – SzondaPhone Kft. as the service provider).

In relation to the WinWithMe software, A GmbH collaborated with Datadat OÜ as a subcontractor data processor.

A copy of the relevant contract/framework agreement was attached by A GmbH to the response letter.

12. A GmbH did not directly use a program for sending SMS messages. This work and the related data processing were carried out by SzondaPhone Kft.

13. In response to the Authority's request regarding the sending of SMS messages, A GmbH stated that as part of its standard data protection practice, it destroyed all information derived from any data processing related to the outgoing messaging in question by December 31, 2021. Thus, it currently no longer possesses database selections for the specified period.

14. In response to the question regarding the selection method used during SMS sending, A GmbH stated that the data controller determines the task concerning specific messages, and only they can comment on this. All numbers discussed in the Authority's inquiry were sent SMS messages that the data controller lawfully managed during the specified period, with appropriate data protection authorization, without filtering or selection.

15. Based on the task assignment from Datadat Kft., and in accordance with the data controller's instructions, all sent SMS messages contained a hyperlink to a webpage that provided all necessary data protection information alongside the relevant subscription option. Any data provision by citizens on the linked interface was voluntary. Its accessibility is: <https://karacsonygergely.hu/segitunkszavazni/>

vi)

In response to the questions contained in the Authority's inquiry, Datadat Kft. provided the following statements:

1. Datadat Kft. is not a subscriber to such phone numbers and has never been a data controller for sending messages to such numbers in any form.
2. Datadat Kft. engaged A GmbH as a subcontractor as a data processor, for the purpose of involving a subcontractor commissioned with SMS sending.
3. They do not have information regarding the phone number used for sending SMS messages, the subcontractor performing this task did not undertake any contractual obligations in this regard, and no information was provided to Datadat Kft. regarding this.

Datadat Kft. received the commission for sending SMS messages from the Ninety-Nine Movement Association as the data controller, and the company is solely responsible for the SMS sending.

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data processor. However, it is unable to send a copy of the contract to the Authority, as during the investigation initiated by the Central Investigation Directorate of the National Tax and Customs Administration (hereinafter: NAV Criminal Directorate) against Datadat Kft., all client and subcontractor contracts related to the current case were seized during the raid conducted at the company's headquarters on October 17, 2022.

4. According to Datadat Kft.'s data protection practice, database segments and documentation related to data processing are regularly deleted in email form to protect the subjects involved in data processing, and the company has acted accordingly with the relevant database segment, thus it cannot provide any further documentation.

5. The text of the referenced SMS messages was for mobilization purposes, which were sent to the phone numbers recorded through the subscription channels by the GmbH, as the data processor. The purpose was to send a further registration link for the day of the primary voting.

6. According to its statement, Datadat Kft. only instructed the sending of messages on behalf of the data controller to phone numbers for which, at that moment, the data controller was the lawful data controller to the best of its knowledge.

7. Datadat Kft. has no information on how the data controller built its database. Datadat Kft. ordered SMS sending, CRM system operation, Facebook Messenger chatbot channel operation, software operation supporting the creation of online subscription websites, and mass email sending services from the GmbH as its subcontractor. In these cases, the GmbH was solely a data processor, as commissioned by Datadat Kft.

Datadat Kft. ordered the installation and operation of the Action Network and WinWithMe software from the GmbH during the relevant period; however, according to its statement, it currently does not have access to these client environments. According to its statement, the company is not the legal owner or developer of the relevant software and was not so during the period affected by the investigation in September 2021.

8. Access to the database was granted only to the IT manager of the GmbH, as a subcontractor data processor, and to employees designated by Datadat Kft. for its clients, via internet connection.

9. Regarding the data protection information, it stated that, to their knowledge, the Action Network subscription pages and emails contain embedded links to the data controller's privacy policy and the option to unsubscribe. The WinWithMe software, in accordance with the Facebook Messenger platform rules, contains an unremovable link to unsubscribe and the data controller's privacy policy through the Messenger's so-called hamburger menu, within one click. Facebook disables Messenger channels initiated without these links.

10. Datadat Kft. did not directly send SMS messages regarding the subject of the investigation and did not directly contract with the relevant subcontractor, thus it cannot provide information about the SMS sending program according to its statement.

11. As part of Datadat Kft.'s standard data protection practice, it destroyed all information derived from derived data processing related to the outgoing messaging subject to the investigation by December 31, 2021, thus it no longer possesses database selections for the specified period.

12. No segmentation, profiling, or target group formation occurred regarding the inquiry. All messages were sent to mobile numbers managed by the data controller during the specified period.

13. The messages sent at the instruction of the data controller contained a link to a webpage that includes information regarding the rights of the data subjects.

vii)

The Authority contacted the NAV Criminal Directorate to obtain a copy of the contract referenced by Datadat Kft., which was seized by the NAV Criminal Directorate.

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In response to the inquiry, the NAV Criminal Directorate sent a copy of the framework contract dated July 15, 2021, between the Kilencvenkilenc Mozgalom Egyesület (the principal) and Datadat Kft. (the agent).

viii)

The Kilencvenkilenc Mozgalom Egyesület (hereinafter: the Association) stated the following regarding the questions contained in the Authority's inquiry:

1. The Association, as the data controller, sent the SMS messages involved in the investigation through Datadat Kft., acting as the data processor. The Association is not aware of any other person or organization sending SMS messages with the same content.
2. The sending of the SMS messages was technically carried out by Datadat Kft. as the data processor; therefore, the Association has no knowledge of what phone number was listed as the sender of the messages, nor whether they were sent from the phone numbers specified by the Authority.

The SMS messages were not sent on behalf of a third party or based on a third party's decision.

3. The Association acted as the data controller during the sending of the SMS messages.
4. From the summer of 2021, the Association collected sympathizer data directly from the affected individuals through the websites kilencvenkilenc.hu and karacsonygergely.hu, including name, address, phone number, and email data. After providing personal data, the affected individuals were required to indicate their acknowledgment of and acceptance of the linked data protection information by checking a checkbox. Subsequently, on the next page, they had to confirm their consent to the data processing for the purpose of maintaining contact. The data provided in this manner was then automatically transferred, without any human intervention, into the CRM system provided by the data processor, Datadat Kft.

Additionally, the Association also collected sympathizer data using the Facebook application named WinWithMe. The application, in accordance with Facebook's platform rules, only allows the acquisition of certain user data provided during Facebook registration if the affected individual gives consent after the link to the data protection information is provided and the affected data is specifically identified.

Following the consent given in this manner, these personal data (name, phone number, email) were also transferred into the CRM system provided by the data processor, Datadat Kft.

5. The WinWithMe software is a programmed, automated messaging application based on the Facebook Messenger messaging application, which is capable of organizing data into a database according to the Facebook Messenger platform rules through Facebook's public, encrypted IT connection point (API).

According to Facebook Messenger platform rules, messaging software developed by third parties can only access the data of Facebook users who voluntarily declare their consent to receive messages from the specific Facebook public figure page to which the particular Facebook Messenger channel is connected. The platform rules do not allow (even from a technical standpoint) another page's Messenger channel to send messages based on this consent, nor do they allow a third-party software to send messages to a user who has unsubscribed.

Facebook's relevant public, encrypted, secure access API transmits a very limited amount of data about subscribers. By default, the Facebook API only provides the last name and first name of opted-in users, as well as a so-called PSID (page scoped user ID) that is interpretable only for the specific channel, to the software developed by the third party. Furthermore, the WinWithMe software is capable of storing the email address or mobile number provided to Facebook by the subscribed user after repeated, separate, unique, voluntary, and documented user consent.

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6. A subscriber to the messaging application operated by the WinWithMe software may only be someone who has opted in through one of the following forms on the Facebook Messenger channel

linked to the respective Facebook public figure page as a Facebook user:

-

by giving explicit consent in response to a call to action triggered by a message sent by the user to the respective Facebook Messenger channel;

-

by giving explicit consent in a Messenger conversation triggered by commenting on the respective Facebook page;

-

by giving explicit consent in a Messenger conversation triggered by clicking on an advertisement on the respective Facebook page.

A message sent to the channel, commenting, or clicking on an advertisement does not constitute a subscription unless the user explicitly agrees to the subscription based on the call to action that appears as a result.

7. In the practice of the Association, there have been instances where an affected individual approached the Association claiming that they had not provided their phone number to anyone, and during the handling of the request, it was revealed that the individual had forgotten, as they themselves acknowledged, that they had given consent for the processing of their data through the Facebook chatbot; however, in such cases, the Association deleted the personal data based on the affected individual's request.

8. Based on the above, the Association currently processes the personal data of 63,313 affected individuals based on their consent. However, not all users provided all the indicated data.

9. Since the data processor Datadat Kft. no longer provides the licensing of the two software programs, the data is currently stored by the Association in CSV format on a USB drive, which is physically kept in the apartment of one of the Association's members in Budapest, on behalf of the Association's managing director. Due to the CSV format, the database currently does not have a menu structure.

10. During registration, the affected individuals had to declare by checking the checkbox that they had read and accepted the data processing information linked next to the checkbox. In the case of consent given within the framework of the Facebook application, the same link was included when indicating the policy required by Facebook. The data processing information is available at <https://kilencvenkilenc.hu/adatkezelesi-tajekoztato/>.

11. The Association engaged Datadat Kft. as a data processor. The data processor is knowledgeable about what software was used for the technical operation of sending SMS messages. The Association sent SMS messages to all those who consented to the processing of their phone numbers. The Association has no knowledge regarding which phone numbers the messages were sent from. The Association attached the list of phone numbers for which it ordered SMS sending from Datadat Kft. as the data processor.

12. The website accessible via the link in the text of the SMS contained information regarding the enforcement of the rights of the affected individuals.

13. The Association responded to the incoming requests from affected individuals.

ix)

In order to fully clarify the facts, the Authority additionally called on the Association several times to send a copy of the contract concluded with Datadat Kft. related to the SMS sending involved in the investigation, along with all its annexes. According to the certificate of receipt, the Association received the Authority's inquiries, but no response letter was received regarding the inquiries.

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B) Findings of the Authority

1. Summary of data processing based on the established facts

According to the notification received by the Authority, unsolicited SMS messages containing the content described in point A./ii. were sent to the notifier from the phone numbers +36303444081 and +36303444674 between September 14 and 20, 2021.

(i)

The Association commissioned the sending of the SMS messages. According to its statement, the Association can be considered the data controller regarding the SMS transmissions.

(ii)

Based on the commission, the SMS messages were sent to all mobile phone numbers managed by the Association during the specified period.

(iii)

The Association sent the SMS messages through Datadat Kft.

(iv)

Datadat Kft. collaborated with its subcontractor, Datadat GmbH, during the sending of the SMS messages. The GmbH did not directly use a program for sending SMS messages but worked with SzondaPhone Kft. in executing the SMS transmissions.

(v)

During the specified period, Datadat Kft. ordered the installation and operation of the Action Network and WinWithMe CRM systems from Datadat GmbH. According to its statement, the GmbH supported data collection as a data processor subcontractor by operating these data collection methods.

- The CRM system named Action Network is an email sending and subscription software that manages the entire database, including email sending and the data provided by citizens through subscription pages; thus, the software is capable of configuring unique subscription web pages for the data controller and collecting data through these pages, requiring the digitally documented consent of the data subject for any data to be saved.

- The WinWithMe CRM system exclusively manages data acquired through the Facebook Messenger channel; thus, the software is a Facebook Messenger messaging application that processes personal data from the data subject only with the digitally documented, explicit consent of the data subject, in accordance with Facebook's platform rules.

Access to the database is granted solely to the IT manager of Datadat GmbH and designated employees of Datadat Kft. via an internet connection through a web browser.

(vi)

The Association collected personal data such as name, address, phone number, and email address directly from the data subjects through the websites kilencvenkilenc.hu and karacsonygyergely.hu. The data provided by the data subjects was automatically entered into the CRM system provided by Datadat Kft.

Additionally, the Association also collected personal data using the WinWithMe Facebook application. Following the consent provided by the data subjects on the site, the personal data (name, phone number, email) was also entered into the CRM system provided by Datadat Kft.

Based on the data provision on the designated sites and the consent of the data subjects, the Association manages the personal data of more than 63,000 data subjects.

(vii)

SzondaPhone Kft. provided SMS messaging services on behalf of Datadat GmbH, during which they contacted 119,776 data subjects. The phone numbers to be contacted via SMS were provided by Datadat GmbH via email, and the SMS sending occurred to all numbers on the complete list provided by the GmbH.

(viii)

In connection with the SMS sending, the information for the data subjects was provided through a hyperlink placed in the SMS messages.

(ix)

During registration, when providing their personal data on the subscription page, the data subjects were required to check the checkbox before the statement "I have read and accept the privacy policy." The privacy policy hyperlink navigated to the page <https://kilencvenkilenc.hu/adatvedelmi-tajekoztato/> (the page at the bottom of the document).

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The data protection notice is currently no longer available). In the case of consent given within the framework of the Facebook application, the same link was included during the indication of the policy required by Facebook, according to the Association's statement.

2. The process of data processing, clarification of roles in data processing in relation to SMS sending

2.1 According to the definition in Article 4, point 7 of the GDPR, the data controller is a natural or legal person, public authority, agency, or any other body that determines the purposes and means of processing personal data, either alone or jointly with others, while according to point 8, the data processor is a natural or legal person, public authority, agency, or any other body that processes personal data on behalf of the data controller.

According to the EDPB guidelines No. 7/2020 (hereinafter: Guideline No. 7/2020) regarding the definitions of data controller and data processor under the GDPR, the term "determines" among the elements described above refers to the data controller's influence on data processing through the exercise of decision-making authority. The data controller is the one who determines the key elements of data processing. To establish this, it is necessary to examine the specific data processing operations and to understand who determines them, i.e., to investigate why the specific data processing took place and who decided that the data processing should be carried out for a specific purpose.

A crucial component of the definition of the data controller is the controller's influence on the purposes and means of data processing. Defining the purposes and means means deciding why and how data processing occurs. In the case of a specific data processing operation, the data controller is the entity that determines why the data processing should take place—i.e., for what purpose, or why—and how this purpose can be achieved, i.e., what means should be used to achieve the purpose. According to Article 4, point 7 of the GDPR, a legal entity that influences the processing of personal data participates in determining the purposes and means of processing. The data controller must decide both on the purpose of the processing and on its means. The data controller cannot agree only on the purpose; it must also make a decision regarding the means of processing. In contrast, the party acting as a data processor can never determine the purpose of the data processing.

In addition to the above, the guidelines emphasize that anyone who decides to process data must consider whether this involves personal data, and if so, what obligations exist under the GDPR. An entity is also considered a "data controller" even if it does not intentionally target personal data or mistakenly determines that it does not process personal data.

2.2 Based on the established facts, SMS messages for mobilization purposes were sent to the phone numbers of data subjects recorded on the Association's subscription channels, with the purpose of sending an additional registration link for the day of the pre-election voting.

The Association commissioned Datadat Kft. for the SMS sending, and Datadat Kft. in turn commissioned Datadat GmbH to send SMS messages to the phone numbers recorded through the subscription channels, which company entrusted the technical implementation to SzondaPhone Kft. "v.a."

2.3 In its response letter sent to the Authority's inquiry, the Association stated that the data controller concerning the SMS sending is the Association.

Datadat Kft., Datadat GmbH, and SzondaPhone Kft. considered themselves as data processors in relation to the data processing carried out in connection with the services they provided.

2.4 Based on the established facts—within this, the contract dated September 1, 2021, between Datadat GmbH and SzondaPhone Kft. "v.a." and the statements of the contracting parties

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pursuant to – SzondaPhone Ltd. "v.a." conducted exclusively SMS messaging activities in connection with the examined data processing, meaning it participated solely in the technical execution of message sending.

The phone numbers used for sending SMS messages were provided to SzondaPhone Ltd. by Datadat GmbH, and the text of the SMS messages was also supplied by the GmbH as stipulated in the previously referenced contract dated September 1, 2021 (contract point 2, third paragraph:

"Converting the information sent by the customer into SMS format and then sending it to the list of mobile phone numbers provided by the customer."). The GmbH also performed tasks related to the collection of phone number data, thus supporting the Association's data collection with data collection methods (including the licensing of the Action Network and WinWithMe software presented in points v./5. and vii./4.), the installation and operation of which were ordered by Datadat Ltd. from the GmbH during the relevant period (as per the attached contract dated May 1, 2021, between Datadat GmbH and Datadat Ltd., which states in point 1 and in Annex A that Datadat Ltd. availed itself of the following services from the GmbH: "The Client is taking part in digital campaigns where the Service Provider provides online advertisement services, robocall/sms services, digital campaign management and related digital consultancy services. And the service provider provides ad management services and creative production services.").

According to its statement, the GmbH is not a data controller of any data and does not possess any database; however, it stated that access to the database storing the data collected through the software is restricted solely to the GmbH's IT manager and designated employees of Datadat Ltd. Consequently, the GmbH and Datadat Ltd. are capable of performing data processing operations through access to the database.

Datadat Ltd. commissioned Datadat GmbH to send SMS messages to the phone numbers recorded through the subscription channels on behalf of SzondaPhone Ltd. "v.a."

According to its statement, Datadat Ltd. ordered SMS sending, CRM system operation, Facebook Messenger chatbot channel operation, software operation supporting the creation of online subscription websites, and mass email sending services from Datadat GmbH. The designated employees of Datadat Ltd. also have access to the database storing personal data collected through the subscription channels.

The Association – according to its statement – commissioned Datadat GmbH to send SMS messages. The phone number data used for sending SMS messages was collected through the subscription channels available on the Association's website and the WinWithMe Facebook Messenger application, the installation of which was ordered by Datadat Ltd. from Datadat GmbH. (According to the listing in point 2 of the attached contract dated May 1, 2021, between Datadat GmbH and Datadat Ltd., the services provided by the GmbH include: i. Digital Advertisement Production; ii. Digital Campaign Management; iii. Robocall campaigns; iv. SMS campaigns; v. Call center services; vi. SAAS services: Digitribe, WinWithMe, Action Network, Custom Integration.)

2.5 As outlined in point 2.1, a significant element in defining the data controller is the data controller's influence over the purposes and means of data processing. Based on the above, the Authority establishes that both the Association, Datadat Ltd., and Datadat GmbH are data controllers concerning the examined data processing, as they played an active role in determining the means of data processing and shaping the manner of data processing as described above.

The Authority also examined, based on Article 26 of the GDPR, whether they qualify as joint data controllers or parallel data controllers. According to Article 26 of the GDPR, if the purposes and means of data processing are jointly determined by two or more data controllers, they are considered joint data controllers.

In this regard, guidance number 7/2020 highlights that "joint participation in the determination of purposes and means means that more than one legal entity has a decisive influence on whether the data processing occurs, and if so, how." "Joint participation...

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may manifest, for example, in the form of a joint decision made by two or more organizations, or may arise from coordinated decisions of two or more organizations regarding the objectives and fundamental means." "Decisions can be considered coordinated regarding objectives and means if they complement each other and are necessary for the data processing to occur in a way that has a tangible impact on determining the purposes and methods of data processing." "An important criterion for identifying coordinated decisions is whether the data processing would not be possible without the participation of both parties in terms of objectives and means, in the sense that the data processing

carried out by each party is inseparable, that is, inextricably linked.”

The guidance further emphasizes that “joint data processing also requires that two or more organizations exert influence over the manner of data processing. This does not mean that the existence of joint data processing requires all involved organizations to determine all means in every case.” “Different joint data controllers may determine the manner of data processing to varying degrees depending on who is actually in a position to do so.” “It may also occur that one involved organization provides the means of data processing and makes it available for personal data processing activities carried out by other organizations. The organization that decides to use these means for the processing of personal data for a specific purpose also participates in the determination of the means of data processing.”

In relation to the data processing examined, the Authority found that the purpose of the data processing – namely, the sending of an additional registration link for the day of the pre-election vote – was determined by the Association. However, according to the Authority's findings, the means of data processing were determined jointly by the Association, Datadat Ltd., and Datadat GmbH: they decided through a chain of mutual mandates that they wished to deliver the message to the data subjects in the form of an SMS, and they made coordinated decisions that telephone number data were necessary for sending SMS messages, which could be collected through the subscription channels created on the Association's websites. In May 2021, Datadat Ltd. ordered SMS sending, CRM system operation, Facebook Messenger chatbot channel operation, online subscription website development support software operation, and mass email sending services from Datadat GmbH, and also commissioned the GmbH to give a specific, technical SMS sending mandate to SzondaPhone Ltd. “v.a.”. Ultimately, all these means contributed to the realization of SMS messaging, in which they jointly participated in determining the necessary services and made coordinated decisions regarding the manner of data processing, its means, and its implementation, which data processing operations were inseparable and closely related; these agreements represented the establishment of the substantive process of data processing and went beyond mere technical execution and technical operations. All of this presupposes the existence of specific, and in some cases innovative, expertise related to infocommunication solutions, the data economy, the business use of social media, and political marketing, which these companies provide as a service. Therefore, as a result of the investigation, the Authority concluded that the Association, Datadat Ltd., and Datadat GmbH qualify as joint data controllers concerning the examined data processing.

The Authority emphasizes that data controller liability cannot be evaded by organizations attempting to circumvent data controller responsibility through mutual mandates, multiple contractual constructions, essentially through a contractual chain, or by hiding behind a financially less accountable association to disguise their role in data processing. Due to the principle of accountability, the data controller is responsible for the compliance of the data processing and must be able to demonstrate this, even if it attempts to disguise its data controller status in a given case.

Guidance No. 7/2020 also emphasizes that “it is not possible to become a data controller or to evade data controller obligations simply by structuring the contract in such a way that the factual circumstances suggest otherwise,” as this would result in the nullification of Article 26(3) of the GDPR. This was confirmed by the Capital Court.

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In its judgment No. 105.K.701.083/2023/9, the Court stated that “Article 26(1) of the GDPR allows for the allocation of tasks and responsibilities related to the obligations imposed by the GDPR arising from data processing, and does not authorize any of the data controllers to be exempt from all data controller responsibilities, as this would annul the data controller status itself and lead to the emptying of Article 26(3) of the GDPR.”

In relation to the above, the Authority emphasizes that although the GmbH can be identified as a joint data controller, it has determined that it does not have jurisdiction over the GmbH, and therefore it is not in a position to make a determination regarding this organization. However, the Authority stresses that in the future, matters concerning the company's data processing can be requested as local cases

within the framework of the One Stop Shop.

3. Legality of Data Processing

According to the findings established in the previous point, in relation to SMS messaging, the Association, Datadat Ltd., and Datadat GmbH qualify as joint data controllers. The Association carried out the data processing related to SMS sending by utilizing Datadat GmbH, which in turn engaged another subcontractor for the data processing related to SMS sending, specifically for the technical execution of SMS sending and the collection of phone numbers used for SMS sending.

Based on the established facts, the collection of personal data occurred directly from the data subjects through the subscription pages of kilencvenkilenc.hu and karacsonygergely.hu, and sympathizer data was also collected via the WinWithMe Facebook application.

During the data collection through the kilencvenkilenc.hu website, there was an option for online data submission under the "Join" menu item, specifically under "manual joining," and in addition to this manual joining, the site also offered the possibility to apply via Facebook. The site promoted the joining with the following text: "Let Gergely Karácsony be the Prime Minister of Hungary! We create a homeland that offers a chance to everyone, a future for everyone, and a happy life. It is time to build a new policy that represents the interests of 99% of the country instead of the wealthiest 1%. Join us!" Currently, this menu item is not available on the site.

To join, it was possible to provide the following data: last name, first name, email address, which data fields were marked with an asterisk (*).

There was also the option to provide phone number, postal code, and address details, which were not marked with an asterisk.

Subsequently, the data subjects had to indicate their acceptance of the privacy notice by checking the checkbox "I have read and accept the privacy statement" before clicking the "I join" button, which statement was accessible via a hyperlink to the now also unavailable <https://kilencvenkilenc.hu/adatkezelesi-tajekoztato/> page.

In addition to the above data collection, it occurred on the <https://karacsonygergely.hu> website, where by clicking on the "Join" tab, the site also navigated to the previously described interface of the kilencvenkilenc.hu website.

According to the data processing notice and the statement of the Association, the legal basis for the processing of personal data provided during the joining process through the designated pages is the consent of the data subjects as per Article 6(1)(a) of the GDPR. The purpose of data processing, according to the notice, is to enable the Association to maintain contact with its sympathizers and to send them targeted information (newsletter, advertisement). The duration of data processing, as stated in the data processing notice, lasts until the withdrawal of consent.

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3.1. Legal Basis for Data Processing

a) According to the definition in the GDPR, the name, email address, phone number, and residential address data are considered personal data of the data subject, while any operation performed on the data, such as collection, recording, storage, and use of the data, is classified as data processing. Under the provisions of the GDPR, several requirements must be met for the legality of data processing. Among these, the principles of legality, fairness, and transparency, as well as purpose limitation, as stated in Article 5(1)(a) and (b) of the GDPR, play a prominent role. Furthermore, the data controller must have a legal basis for data processing in accordance with Article 6(1) of the GDPR.

The consent referred to as the legal basis for data processing under Article 6(1)(a) of the GDPR means that the processing of personal data is lawful if the data subject has given consent to the processing of their personal data for one or more specific purposes.

In order for the data controller to lawfully rely on consent as the legal basis, all conceptual elements of consent must meet the relevant requirements.

b) Considering that the data subjects have expressed their political opinions by joining based on the information available on the designated websites, the data provided in this manner is also considered information specifically indicating the political opinions of the data subjects, and as such, it qualifies as special categories of personal data under Article 9(1) of the GDPR.

The processing of special categories of personal data is generally prohibited by the regulation and is subject to strict conditions. Such special categories of personal data may be processed, among other things, if the data subject has given explicit consent to the processing for one or more specific purposes, as stated in Article 9(2) of the GDPR.

3.2 Purpose of Data Processing

According to Article 5(1)(a) of the GDPR, the processing of personal data must be carried out lawfully and fairly, and in a transparent manner for the data subjects. Furthermore, paragraph (b) of the same article provides for the principle of purpose limitation, which states that the collection of personal data may only occur for specified, explicit, and legitimate purposes, and that such data may not be processed in a manner incompatible with those purposes.

Articles 5(1)(a) and (b) of the GDPR, along with the (39) recital, further state that it must be transparent to natural persons how their personal data is collected, used, accessed, or otherwise processed, as well as the extent to which their personal data is processed and will be processed. The principle of transparency also applies to informing data subjects about the purposes of data processing. The specific purposes of personal data processing must be explicitly formulated and lawful, and must already be defined at the time of collecting the personal data.

Article 13 of the GDPR specifies the information that must be provided to data subjects at the time of data acquisition.

The content of the message inviting to join on the website

<https://csatlakozz.kilencvenkilenc.hu/form/segitek> does not indicate that the data subjects would be joining an unnamed community for further contact purposes, nor does the data collection interface itself contain any reference to the specific purpose for which the data subjects are consenting to data processing, or that they are "joining" something according to the data collection interface.

In contrast, the data processing information notice informs the data subjects about the purpose of data processing, stating that by "joining" on the site, the data subjects...

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express their intention to join as sympathizers, thereby contributing inseparably to the Association's ability to maintain contact with them and send targeted information – newsletters, advertisements – to them.

It is, however, not clear for the affected parties based on the information and the text placed on the website <https://csatlakozz.kilencvenkilenc.hu/form/segitek>, to whom/which organization their declared intention to join actually signifies support. The website

<https://csatlakozz.kilencvenkilenc.hu/form/segitek> refers to support for Gergely Karácsony and joining his sympathizers, while the data processing information already indicates in the section describing the purpose of data processing that the Association intends to maintain contact with its sympathizers. Thus, it was not clear and transparent for the affected parties whose management their personal data provided during the "joining" process would actually fall under, and for what specific purpose they were giving their consent to data processing. This is further supported by the fact that by clicking on the "Join!" menu item on the karacsonygergely.hu website, the affected party is directed to the Association's website.

In general, it is important to clearly indicate who the data controller is, who manages personal data for the given purposes; however, this is an even more prominent requirement in the case of political data processing.

The preamble (32) of the GDPR states that if data processing serves multiple purposes

simultaneously, consent must be given separately for each data processing purpose. If the data controller does not attempt to request separate consent for each purpose, the freedom of decision is lacking.

The lawfulness of the processing of the affected parties' personal data can therefore be established if the affected party has received adequate information regarding the specific purpose(s) for which their personal data is being collected, and if the affected party has given separate, i.e., clear and specific consent to the processing of their personal data for all purposes.

The Authority finds that the Association, by failing to provide the affected parties with adequate information regarding the purpose of data processing, violates the transparency requirement set forth in Article 5(1)(a) of the GDPR.

4. Information on data processing

4.1 According to Article 12(1) of the GDPR, the data controller is obliged to take appropriate measures to provide the affected parties with all information regarding the processing of personal data mentioned in Articles 13 and 14, as well as every piece of information under Articles 15-22 and 34, in a concise, transparent, intelligible, and easily accessible form, clearly and comprehensibly formulated.

The system of appropriate information in the GDPR serves to ensure that the affected party is aware of which personal data will be processed by which data controller and for what purpose, and how it will be processed. This is essential for the affected party to be in a position to effectively exercise their rights.

In the case of data processing based on Article 6(1)(a) of the GDPR, the data controller is obliged, according to Article 4(11) of the GDPR, to provide information that allows for informed consent to be given not only before the commencement of data processing but also before obtaining consent.

Consent to data processing can only be valid if it is requested for specific purpose(s) – which can be specified separately for each purpose – and if adequate information is provided beforehand, placing the affected party in a position to make an informed decision regarding the granting of consent, and meeting all validity requirements set forth in the GDPR. Both the provisions in the preamble and Article 12(1) of the GDPR prescribe the achievement of the results.

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When determining the obligations of the data controller, it must provide assistance to the data subject so that they can exercise all their rights in an informed manner.

The principle of fair and transparent data processing, as stated in Article 5(1)(a) of the GDPR, requires that the data subject be informed about the fact and purpose of the data processing. Therefore, one essential condition for the lawfulness of data processing is that the data controller adequately informs the data subject about all important circumstances of the data processing.

Articles 13-14 of the GDPR specify what information must be provided regarding the processing of personal data, while Article 12 of the GDPR provides guidance on the formal requirements for such information.

4.2 The Authority establishes that the content of the data processing information does not provide adequate information about all the actual purposes of the data processing, as it did not give the data subjects clear and detailed information about what exactly they are consenting to (the processing of their personal data in a supporter registry and/or further data processing for contact purposes).

Although the name and email address fields were marked with an asterisk on the online data collection page, there was no information regarding the significance of this, either on the data collection interface or in the data processing information, about whether all data must be provided for the "joining" to be successful, or if it is sufficient to provide only the personal data marked with an asterisk. Thus, it may have seemed to the data subjects that providing all data was mandatory.

Furthermore, the data processing information did not include any information on how the data controller plans to maintain further contact, so the data subject could not clearly decide which method they prefer if the data controller wishes to maintain contact with the data subjects through multiple

channels in the future, and which necessary personal data they would provide for that.

4.3 The Authority establishes that the data processing information provided by the data controller included information about which data processors are used for the data processing; however, during the clarification of the facts, the Datadat Ltd. referenced by the Association, as well as any further subcontractors it employs, are not named, nor is it specified what activities the organizations and legal entities participating in the data processing perform. In the case of the particularly complex, multi-tier subcontracting system applied in the examined data processing, it would be especially important to provide a proper and easily understandable description of which legal entity performs which tasks in relation to the personal data.

4.4 The Authority further establishes that, according to the Association's statement, it continues to process the personal data of more than 63,000 data subjects collected through the designated data collection, but the data processing information is no longer available on the Association's website, nor is there any information regarding data processing on the designated website of the Association.

4.5 Based on the above, the Authority establishes that

(i) The Association and Datadat Ltd. have not provided clear, adequate, and accurate information to the data subjects about all essential circumstances of the data processing in connection with the data collection on the designated websites, and they are currently not providing any information to the data subjects regarding the data processing, as the online data processing information has been removed from the Association's website despite the fact that it continues to carry out data processing, thereby violating Articles 13(1)-(2) of the GDPR.

(ii) The Association and Datadat Ltd. also violate the provisions of Article 12(1) of the GDPR by currently not providing any information to the data subjects regarding their data processing.

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5. Validity of the Legal Basis for Data Processing

According to the definition in Article 4(11) of the GDPR, the consent of the data subject is a voluntary, specific, informed, and unambiguous indication of the data subject's wishes, by which the data subject signifies agreement to the processing of personal data concerning them, either by a statement or by a clear affirmative action. Therefore, consent can only be considered a valid legal basis for data processing if all of its conditions are met.

All conceptual elements of consent can be fully realized if the request for consent is preceded by adequate information. Adequate information is that through which data subjects become aware of the data processing concerning their personal data, and through this information, the right to informational self-determination can be exercised: the data processing can be lawful if the circumstances are fully known to the data subjects.

The Authority finds that, as a result of the explanations provided in points 3 and 4 above, the consent of the data subjects for data processing lacks the most important conceptual elements, the presence of which is necessary for the legal basis of data processing, namely the validity of consent.

Consequently, the Association and Datadat Ltd. are processing the personal data provided by the data subjects on the designated websites without a valid legal basis, thereby violating Article 6 of the GDPR. Since this data falls into the special categories of personal data, the data processing also violates Article 9(1) of the GDPR.

6. According to Article 31 of the GDPR, the data controller must cooperate with the supervisory authority in the performance of its duties – upon the authority's request. Considering that the Association has not responded at all to the Authority's requests despite several calls, it has violated the obligation to cooperate under Article 31 of the GDPR.

C) In light of the above, the Authority, based on Article 58(2)(d) of the GDPR and Section 56(1) of the Infotv.,

h e r e b y n o t i f i e s

- i. the Association to verifiably delete all personal data previously collected from the data subjects through the website <https://csatlakozz.kilencvenkilenc.hu/form/segitek!>
- ii. the Association to subsequently provide information on its website to the data subjects regarding the processing of their personal data (from when to when, what types of data, from what source, and for what purpose were processed, and which data controllers and processors were involved)!
- iii. the Association to further cooperate with the Authority!
- iv. Datadat Ltd. to carry out its data processing operations in accordance with the provisions of the GDPR and to conclude legal transactions according to its actual role in data processing, thus appropriately defining the roles played in actual data processing and entering into agreements in accordance with the content of Articles 26(1) and (2) of the GDPR regarding data processing!

The Authority informs that, according to Section 56(2) of the Infotv., the data controller must immediately take the necessary measures and is obliged to inform the Authority in writing about the measures taken in response to the notification – by sending a copy of the supporting document (e.g., a copy of the record supporting the deletion) – within thirty (30) days of receiving the notification.

According to Section 58(1) of the Infotv., if the necessary measures for remedying the infringement or eliminating the direct risk of infringement have not been taken based on the notification, the Authority will decide on the necessary further measures within thirty days following the expiration of the information deadline. Furthermore, the Authority informs that for the sake of general prevention, it will publish the notification in the form of a report on its website, indicating the names of the data controllers.

Dated: Budapest, according to the electronic signature

Sincerely,

Dr. habil. Attila Péterfalvi
President, Professor Emeritus